



UNITED STATES DISTRICT COURT
for the
DISTRICT OF MASSACHUSETTS

ALTERNATIVE DISPUTE RESOLUTION PLAN

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I. INTRODUCTION

The Alternative Dispute Resolution Act of 1998 requires that each district court authorize the use of Alternative Dispute Resolution (ADR) in all civil actions including adversary proceedings in bankruptcy. 28 U.S.C. §§ 651 et seq. It is the intention of the Court, through Local Rule 16.4 and implementation of this Alternative Dispute Resolution Plan for the District of Massachusetts (the Plan), to provide court-annexed dispute resolution processes designed to provide quicker, less expensive, and generally more satisfying alternatives to continuing litigation. The majority of civil cases filed in this Court settle without a trial. Moreover, cases that are settled early in the process save litigation costs to the parties and the Court, and settlements can provide creative solutions which may not be obtainable from a formal court proceeding. The program seeks to encourage a mutually satisfactory resolution to disputes in the early stages of litigation. Such early case resolution is likely to increase litigant satisfaction with the judicial process and make more efficient use of judicial and private resources.

The parties are encouraged to resolve their disputes in ways that satisfy the underlying interests of all parties, minimize their costs, and take account of their legal rights based upon the facts of their cases. Some cases will require a full in court adjudication. Many cases, however, can reach a satisfactory resolution by using procedures other than trial. For these reasons, this court requires litigants to consider ADR in their cases. See Fed. R. Civ. P. 16; L.R. 16.1(d)(3)(B) (counsel and parties must certify that they have considered resolution of the litigation through use of ADR).

Many ADR procedures are confidential and private. Unless otherwise agreed, only the result of the proceedings will be provided to the assigned judicial officers and no information regarding the substance or merits of the case will be communicated by the mediator.

Parties in all civil cases are encouraged to participate in ADR. All of the district judges and magistrate judges encourage and support ADR initiatives. Court sponsored ADRs generally provide the least costly methods to resolve disputes as they are available without cost to the participants. The parties are of course welcome to hire private mediators or explore other ADR options.

II. COURT SPONSORED ALTERNATIVE DISPUTE RESOLUTION OPTIONS

A. Mediation

Mediation is a process in which the parties meet with a designated mediator to isolate disputed issues, develop options, and consider settlement alternatives, in an effort to reach a consensual agreement that will accommodate the needs and interests of all parties. The court-sponsored mediator is a judicial officer of this court other than the one(s) to whom the case is assigned. Entering the mediation process is ordinarily voluntary and reaching an agreement is always voluntary.

The mediator does not impose any terms or result upon the parties. Rather, the mediator seeks to facilitate the process of negotiation. This is accomplished by exploring alternatives in joint or separate meetings, and communicating options and alternatives, when authorized.

All of the magistrate judges, and some senior district court judges, are willing to act as ADR providers in cases other than their own. Parties are welcome to express their preference for a particular mediator.

B. Private Mediation

By agreement, the parties may pursue any other form of private alternative dispute resolution program at their own expense as long as they comply with any schedule established by the Court. Providers range from organizations to single practitioners with experience in particular areas.

C. Other Options

At the request of the parties, the judicial officer may consider other forms of alternative dispute resolution, including, but not limited to, mini-trial, summary jury trial, and arbitration.

III. ADR ADMINISTRATOR

An ADR administrator is appointed by the Clerk of this Court and works for the Clerk's Office. That person manages and supervises ADR operations. Because of funding constraints, the ADR administrator may have other duties assigned, unrelated to the ADR program. The ADR administrator possesses a full range of authority and responsibility to implement and direct the program options described in this Plan.

The ADR administrator shall:

- Serve as liaison to judges, the Clerk, and other staff on matters relating to the ADR program;
- Provide records as necessary to the judges;
- Direct and coordinate the ADR Program;
- Prepare reports required by the United States Government or other funding sources on the use of funds in the operation and evaluation of the established ADR options; and
- Develop and maintain necessary forms, records, docket controls, and data to administer and evaluate the options effectively.

IV. CONFIDENTIALITY IN ADR PROCEEDINGS AND COMMUNICATIONS

The Court intends through this ADR program to offer an alternative to the formal litigation process. To that end, ADR proceedings must be conducted in a manner that encourages an informal and confidential exchange among counsel, the parties, and the ADR provider(s) to facilitate resolution of disputes. The parties and the ADR provider shall not disclose information regarding the process, including settlement terms, to the court or to third persons unless all parties agree otherwise. Parties, counsel and neutrals, however, may respond to confidential inquiries or surveys by persons authorized by the Court to evaluate the ADR program. Responses provided to such inquiries or surveys shall remain confidential and shall not identify particular cases.

The ADR process shall be treated as a compromise negotiation for purposes of the Federal Rules of Evidence and State rules of evidence. The ADR provider is disqualified as a witness, consultant, attorney, or expert in any pending or future action relating to the specific dispute, including actions between persons not parties to the ADR process.

Substantive memoranda, exhibits, affidavits, and other written communication submitted by counsel or the parties to the mediator pursuant to the requirements of this plan or at the direction, if any, of the mediator, must not be made part of the record or filed with the Clerk of court. Such communication must not be transmitted to the district or magistrate judge to whom the case is assigned except as agreed to by the parties. The Clerk will file and include in the court's record only the order referring a case to ADR and other routine ADR scheduling and proceeding notices.

V. REFERRAL PROCESS

The judicial officer to whom the case is assigned for trial, following an exploration of the matter with all counsel, or by agreement of the parties, may refer appropriate cases to ADR.

A. Order of Reference

Once a determination has been made, either by agreement of the parties or discussion at a conference with the court, that a case should be referred for ADR, an Order of Reference is entered. If the parties can agree on a specific designation to a judicial officer, the name should be included in the Order of Reference. If there is no agreement on a specific ADR provider, the Order of Reference shall designate referral to the ADR Program. A copy of each Order of Reference shall be forwarded to the ADR administrator.

B. Selection of ADR Provider

If the parties can agree on one of the judges, they can request that the particular judge be appointed. Otherwise, the ADR administrator will make the selection based upon availability of the judges, the date requested, and any other relevant considerations. The ADR administrator will docket the name of the assigned mediator.

C. Location of ADR Proceedings

Court-sponsored ADR proceedings will be held typically in the courthouse. A courtroom or conference room will be made available whenever possible. Mediation sessions, at the discretion of the assigned judge, may also be conducted by remote proceedings but personal attendance is strongly encouraged.

D. Attendance at the ADR Proceeding

The lawyers who will be conducting any trial of the case, the parties to the case, and/or anyone having authority to settle the case must attend in person for any mediation session unless they have been excused by the assigned judge.

E. Scheduling ADR Conferences

Once the ADR provider has been designated, the ADR administrator or Courtroom Clerk for the assigned judicial officer will coordinate with the parties to schedule the ADR process in a timely manner. The parties will be notified of the date and location of the proceeding by the ADR administrator or Courtroom Clerk, along with any requirement to submit memoranda or other information that will be helpful to the neutral in advance of the ADR proceeding.

F. Reporting Results of ADR Proceedings

The ADR provider will report the result of the proceedings to the Court. This report will indicate the current status of the case to the presiding judge in order to schedule the matter for further proceedings, unless the case has been resolved. No other information relating to the ADR proceeding will be disclosed to anyone by the ADR provider, unless specifically authorized by the parties.

G. Public Information

The only information regarding ADR proceedings that will be referenced on the public docket for the case will be the entry of the Order of Reference, the Report Re: Reference for Alternative Dispute Resolution and other routine notices and scheduling, and ADR provider information. Substantive memoranda, exhibits, affidavits, and other written communication submitted by counsel, parties or the ADR provider in connection with an ADR process must not be made part of the record or filed with the Clerk of Court.

VI. LIMITED APPOINTMENT OF COUNSEL PURSUANT TO LOCAL RULE 16.4(c)(4)

Upon request of an unrepresented party, the judicial officer may appoint counsel for the limited purpose of providing legal advice and representation in preparation for and during the course of mediation or early neutral evaluation ordered under this rule. Although the scope of this representation is limited, counsel shall provide such services as counsel deems appropriate to the mediation, including but not limited to review of the pleadings, communication with opposing counsel, and interviews with the client and such key witnesses as may be necessary in advance of the mediation or early neutral evaluation.

Counsel appointed under this subsection shall be a member in good standing of the bar of this court, shall agree to serve without compensation from the party and shall file a limited representation appearance on a form provided by the Clerk confirming counsel's consent to serve pro bono and for the limited purpose of assisting the otherwise unrepresented party in the alternative dispute resolution process ordered for the case in which the appearance is filed. The client shall be required to sign the entry of appearance as an indication of the client's consent to and understanding of the nature of the limited scope of representation.

The court-appointed representation shall terminate, and appointed counsel shall have no further obligation to advise or otherwise appear on behalf of the party, when the alternative dispute resolution process is concluded and any resulting settlement agreement is executed. Nothing in this rule prohibits the party and counsel from continuing the legal representation on terms they may negotiate, subject to approval of the court. Appointed counsel may not condition the undertaking of the party's representation on the making of such agreement.